

Laxmi Narayan Mishra v. U.P. Power Corporation Ltd. & Ors.

High Court of Judicature at Allahabad · Lucknow · 4 August 2026 · Writ-C No. 7951 of 2026 · **Writ disposed of; petitioner relegated to a clause 6.5 representation before the Executive Engineer.**

HEADNOTE

On a billing dispute over electricity consumption, the High Court held that an efficacious remedy lies before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, and disposed of the writ with liberty to make a fresh representation to be decided in accordance with law within six weeks.

FACTUAL SUMMARY

The petitioner, a consumer of Madhyanchal Vidyut Vitran Nigam Limited, raised a billing dispute over electricity consumption. An earlier writ (Writ-C No. 8419 of 2022) had been dismissed on 30.11.2022 on his undertaking to pay Rs.15,991, which he claimed to have paid. He alleged that the licensee continued to issue exorbitant bills without considering his grievance or correcting the bills, despite repeated representations to the Executive Engineer, Daliganj, Lucknow. The licensee contended that an efficacious remedy lay under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer's billing dispute over electricity consumption is to be raised before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The writ is disposed of with liberty to make a fresh representation, which the Executive Engineer shall consider and decide in accordance with law within six weeks. ¶ 5-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a billing dispute over electricity consumption, the High Court held that an efficacious remedy lies before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, and disposed of the writ with liberty to make a fresh representation to be decided in accordance with law within six weeks. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE EXCESSIVE OR REQUIRED CORRECTION AFTER PAYMENT OF RS.15,991 PURSUANT TO THE 2022 WRIT.

¶ 3

NOT DECIDED — WHETHER THE LICENSEE HAD FAILED TO CONSIDER THE PETITIONER'S EARLIER REPRESENTATIONS.

¶ 3-4